A defence of the

Manusmṛti

Or

Mānava-dharmaśāstra

A corrupted lawbook or an authentic scripture?



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।। मङ्गलाचरणम् ।।

व्यासाय विष्णुरूपाय गुरुभ्योऽन्येभ्य एव च।
वाणीविनायकाभ्यां च मनवे शास्त्रकारिणे।
नमः सर्वेभ्य एतेभ्यो लेखनारम्भप्राग्भवेत्।।

● Introduction

The *Manusmṛti* or , more properly, the *Mānava-dharmaśāstra,* is one of the most divisive names when it comes to Hindu scriptures. Even the mere mention of it is sure to cause some argument. It is a book which only inspires intense emotion, be it negative or positive; anyone who is familiar with it is seldom indifferent . On the one hand you have the traditional Hindus, who consider it a very holy scripture and the very basis of social organisation, and on the other hand you have the liberal Hindus or anti-Hindus, who consider it a condemnable text in every way, and some, like B.R. Ambedkar, even thought it necessary to openly burn the text to show their rejection of it. This document attempts to defend the manusmṛti against this latter group, in light of its actual contents, other Hindu scriptures and historical evidence.

The critics of the *Manusmṛti* follow a very specific and predictable pattern in their criticism of it. They have, majorly, three criticisms of it. When one fails, they resort to the second, and then the third. The said criticisms are :

1. **That It is only a law book, not a religious scripture**
2. **That even if it is a scripture, it has been corrupted**
3. **That even if it is preserved , it is no longer applicable to the current age.**

These allegations are merely the symptoms, and not the actual cause of them opposing the *Manusmṛti*. The actual reason people resort to finding such pathways to attempt to discredit the *Manusmṛti* in the first place are the following allegations:

4. That It is discriminatory to lower castes
5. That it is discriminatory to women

All these allegations will be examined in turn.

1. Manusmṛti is not a religious scripture

In this regard , the only evidence can be other scriptures themselves. If the other Hindu scriptures attest the *Manusmṛti* as an authentic scripture, then it must be considered as an authentic scripture. Then, do other scriptures mention the *Manusmṛti* ? And if so, how?

The first pramāṇa presented will be from the *Vedas* themselves, which are the supreme authority for a Hindu.

Yajurveda, taittiriya brāhmaṇa , 2:2:10:2

मानवी ऋचौ धाय्ये कुर्याद्यद्वै किं च मनुरवदत्तद्भेषजम् ।

" He should apply the verses of manu, (for) Verily, whatever manu has declared, is medicine."

This should, in and of itself , be sufficient to prove the *Manusmṛti's* status as a religious scripture. Even still, to demonstrate its authority further, we will see the references to it in the *Rāmāyaṇa(I)* , in other *smṛtis*(II) , in the *Mahābhārata(III)* and by scholars of various sects(IV)

(I)
Vālmiki rāmāyaṇa 4.18.31

श्रूयते मनुना गीतौ श्लोकौ चारित्रवत्सलौ।
गृहीतौ धर्मकुशलैस्तत्तथा चरितं हरे ।।

Rama said :
" I have acted according to these verses , which were declared by Manu, are the progenitors of good character, and are accepted by those well-versed in dharma. "

He then goes on to directly quote *Manusmṛti* 8.316 and 8.318.

(II)
The *Manusmṛti* is also widely praised by its contemporary texts, such as the *Nārada, yājñavalkya* and *bṛhaspati* smṛtis. Patrick Olivelle, the foremost contemporary authority on the *Manusmṛti* writes in the introduction of his critical edition :

***Brhaspati, one of Manu's successors and himself a composer of a Dharmasastra, pays Manu the ultimate compliment: Manu is the authority, and any text contradicting Manu has no validity. A couple of centuries earlier, Vätsyäyana , the author of the Kamasutra (1.1.5-10), refers to the origin of the MDh in words reminiscent of the first chapter of the MDh. And Yâjnavalkya (1.4), another author of an early Dharmasastra, places Manu at the head of his list of the authors of Dharmasästras."**

(III)
The *Manusmṛti* is also quoted in the *Mahābhārata* as much as 20 times with direct reference to it as an authoritative text in the critical edition alone.for example :

(1)Mahābhārata 1.67.9

गान्धर्वो राक्षसश्चैव पैशाचश्चाष्टमः स्मृतः |
तेषां धर्मान्यथापूर्वं मनुः स्वायम्भुवोऽब्रवीत् ||९||

“ Gāndharva, rākṣasa, as also paiśāca, which is the eight .
The dharma of these has been discussed by Manu, the son of the self-born. ”

This a direct quote of Manusmṛti 3.21

गान्धर्वो राक्षसश्चैव पैशाचश्चाष्टमोऽधमः ॥ ३.२१

“ Gāndharva, rākṣasa and paiśāca, which is the eighth and the lowest. ”

(2)Mahābhārata 13.44.17
असपिण्डा च या मातुरसगोत्रा च या पितुः |
इत्येतामनुगच्छेत तं धर्मं मनुरब्रवीत् ||१७||

“ She who is not of the piṇḍa of the mother, neither of the gotra of the father, such a (maiden) should be approached (for marriage), such has been declared by Manu.”

This is a direct quote of Manusmṛti 3.5

असपिण्डा च या मातुरसगोत्रा च या पितुः ।
सा प्रशस्ता द्विजातीनां दारकर्मणि मैथुने ॥

“ She who is not of the piṇḍa of the mother, neither of the gotra of the father, such a (maiden) is ideal for the twice-born men for the purpose of marriage and consummation.”

(3) Mahābhārata 3.177.30
वृत्त्या शूद्रसमो ह्येष यावद्वेदे न जायते |
अस्मिन्नेवं मतिद्वैधे मनुः स्वायम्भुवोऽब्रवीत् ||३०||

“ By his qualities, he is equal to a śūdra, unless he is born again in the Vedic rite. Thus has been stated by Manu, the son of the self-born on this dilemma.”

This is a direct quote of Manusmṛti 2.172

शूद्रेण हि समस्तावद्यावद्वेदे न जायते ॥ २.१७२

“ Until he has been born again in the Vedic rite, he is equal to a śūdra”

(4)Mahābhārata 13.116.12

न भक्षयति यो मांसं न हन्यान्न च घातयेत् |
तं मित्रं सर्वभूतानां मनुः स्वायम्भुवोऽब्रवीत् ||१२

“ He who does not eat meat, does not kill nor harm (the animal) , he is stated to be a friend of all beings by Manu, the son of the self-born”.

This is a Direct quote of Manusmṛti 5:50

न भक्षयति यो मांसं विधिं हित्वा पिशाचवत् ।
स लोके प्रियतां याति व्याधिभिश्च न पीड्यते ॥ ५.५०॥

“ He who does not eat meat, disregarding all proper behaviour like a demon (piśāca), he is beloved in the whole world and does not suffer from diseases.”

Aside from these 4, as stated earlier, there are 15 more such quotations, totalling 19 exactly. These are only those verses which are clearly marked with phrases such as *“Manurabravīt*” (Manu has enjoined) or “Manuḥ svāyambhuvo’bravīt “ (Manu, the son of the self-born has enjoined) Or “Manuḥ prāha” (Manu has stated) . There are most certainly even more such quotations not clearly marked in such a manner. Due to the sheer volume of these quotations, it is not possible to state, translate and provide the corresponding verse of the Manusmṛti, for each one. Thus the remaining 15 references will be summarised in the form of a table.

1	1.69.18	स्वपत्नीप्रभवान्पञ्च लब्धान्क्रीतान्विवर्धितान् | कृतानन्यासु चोत्पन्नान्पुत्रान्वै **मनुरब्रवीत्** ||१८||	9	12:256:5	सर्वकर्मस्वहिंसा हि धर्मात्मा **मनुरब्रवीत्** | कामरागाद्विहिंसन्ति बहिर्वेद्यां पशून्नराः ||५|
2	1.111.31	अपत्यं धर्मफलदं श्रेष्ठं विन्दन्ति साधवः | आत्मशुक्रादपि पृथे **मनुः स्वायम्भुवोऽब्रवीत्** ||३१||	10	12:259:35	सत्याय हि यथा नेह जह्याद्धर्मफलं महत् | भूतानामनुकम्पार्थं **मनुः स्वायम्भुवोऽब्रवीत्** ||३५||
3	3:36:20	अश्रौषीस्त्वं राजधर्मान्यथा वै **मनुरब्रवीत्** | क्रूरान्निकृतिसंयुक्तान्विहितान शमात्मकान् ||२०||	11	13.64.6	पानीयदानं परमं दानानां **मनुरब्रवीत्** | तस्माद्वापीश्च कूपांश्च तडागानि च खानयेत् ||३
4	12.21.12	धनं धर्मप्रधानेष्टं **मनुः स्वायम्भुवोऽब्रवीत्** | तस्मादेवं प्रयत्नेन कौन्तेय परिपालय ||१२||	12	13.67.30	यो ददाति स्थितः स्थित्यां तादृशाय प्रतिग्रहम् | उभयोरक्षयं धर्मं तं **मनुः प्राह** धर्मवित् ||३०||
5	12.37.6	तैरेवमुक्तो भगवा**न्मनुः स्वायम्भुवोऽब्रवीत्** | शुश्रूषध्वं यथावृत्तं धर्मं व्याससमासतः ||६||	13	13:88:4	वर्धमानतिलं श्राद्धमक्षयं **मनुरब्रवीत्** | सर्वेष्वेव तु भोज्येषु तिलाः प्राधान्यतः स्मृताः ||४||
6	12:55:17	आहूतेन रणे नित्यं योद्धव्यं क्षत्रबन्धुना | धर्म्यं स्वर्ग्यं च लोक्यं च युद्धं हि **मनुरब्रवीत्** ||१७||	14	13:116:50	हविर्यत्संस्कृतं मन्त्रैः प्रोक्षिताभ्युक्षितं शुचि | वेदोक्तेन प्रमाणेन पितॄणां प्रक्रियासु च ||५०|| अतोऽन्यथा वृथामांसमभक्ष्यं **मनुरब्रवीत्** ||५०||
7	12:96:14	तस्माद्धर्मेण योद्धव्यं **मनुः स्वायम्भुवोऽब्रवीत्** | सत्सु नित्यं सतां धर्मस्तमास्थाय न नाशयेत् ||१४||	15	13.101.64	इत्येतदसुरेन्द्राय काव्यः प्रोवाच भार्गवः | सुवर्णाय **मनुः प्राह** सुवर्णो नारदाय च ||६४||
8	12.113.17	त्वमप्येतं विधिं त्यक्त्वा योगेन नियतेन्द्रियः | वर्तस्व बुद्धिमूलं हि विजयं **मनुरब्रवीत्** ||१७||	-	-	-

There are hundreds of references and quotations to the *Manusmṛti* as an authoritative text in purāṇas as well, but for the sake of brevity they shall not be mentioned.

(IV)
The *Manusmṛti* is also widely revered and considered an authority by all sects or *sampradāyas* of hinduism . There exist 9 major commentaries on the *Manusmṛti*, by scholars or *āchāryas* from all sects. Ādi śankarāchārya, the highly revered founder of the smārta sect, has quoted manusmṛti and vouched for its authority many times. For example,

Śaṅkarāchārya's bhāṣya on brahma sūtra 2.1.1

भवति चान्या मनोर्माहात्म्यं प्रख्यापयन्ती श्रुतिः यद्वै किंच मनुरवदत्तद्भेषजम् इति मनुना च सर्वभूतेषु चात्मानं सर्वभूतानि चात्मनि।

" There exists another Vedic verse of praise (*māhātmya*) for Manu, which states " whatsoever manu has stated is medicine ". And Manu has stated, " in all beings is the self and in the self is all beings " (exact quote of Manusmṛti 12:19). "

Similarly, Madhva and Rāmānuja, founding āchāryas of vaiṣṇava sects, have mentioned *Manusmṛti* in their own commentaries of the brahma sūtra 1.3.36.

In conclusion, every single scripture, be it Vedas, Rāmāyaṇa , Mahābhārata & purāṇas, other smṛtis, as well as great scholars from all sects, mention and quote the *Manusmṛti* repeatedly as a highly authoritative and divine scripture, not merely a law book.

Thus, Manusmṛti is an authoritative scripture of Hinduism.

2. Manusmṛti has been corrupted

Once it has thus been thoroughly established that the *Manusmṛti* is in fact an authentic scripture within Hindu epistemology, then comes the doubt whether the *Manusmṛti* we have today is the same one as the original scripture which has been referred to in the Vedas and other scriptures as seen. The critics of the *Manusmṛti* propose that the text we currently have as *Manusmṛti*, is not written by a single "Manu" at all, but is the compilation of many sayings attributed to him, and interpolated and edited over a long period. In this regard I would raise a few points.

(I) Cross textual attestation

The vast majority of verses found in the *Manusmṛti* are corroborated and have parallels in other scriptures, such as the *Mahābhārata* & the *Rāmāyaṇa* [as shown] , as also in the contemporary works of manusmr̄ti , i.e other smṛtis like *Yājñavalkya, nārada* and *vyāsa* , As well as the griha sūtras & dharmasūtras .

In the translation of the *Manusmṛti* by Ganganāth jhā along with the commentary of Medhātithi, , which is the most widely available translation, he has also included at the end of each verse comparative notes regarding parallel verses present in other smṛtis or in the dharmaśāstras .

Indeed, there is barely any verse in the whole of the manusmṛti which does not have some parallel verse in the other smṛtis or dharmasūtras, most of them having several. Thus if a person were to interpolate anything in the *Manusmṛti*, he would also have had to interpolate these verses simultaneously in 2-3 other texts, which is absurd.

(II) Manuscriptural stability

For a lot of other ancient texts, we see a significant amount of discrepancy in their manuscriptural record. There are multiple regional recensions, each differing by hundreds or even thousands of verses. In such cases the secular scholarship argues that those sections which are available in one particular region, must be later additions, and only the ones common to all must have made up the original , untampered text. This is not seen in the *Manusmṛti*. There are no competing short and long recensions for it. Manuscripts show the same text with minor variation. the scholar P.V. Kane writes , citing Dr. Julius Jolly , in his book *History of dharmaśāstras* , page no.140,

"The extant Manusmrti is divided into twelve adhyAyas and contains 2694 slokas. Dr. Jolly's edition (published in 1895) prepared after collating numerous manuscripts and printed editions contains only one Sloka more. "

Similarly Patrick Olivelle writes on page 374 of his critical edition :

"**All the manuscripts, and commentaries of the Mānava-dharmaśāstra contain basically the same text. The additional verses found in some can easily be detected. There are no major recensions of the MDh giving longer or shorter versions of the text, as, for example, in the case of the two epics."**

(III) Wealth of commentaries

The *Manusmṛ*ti has the largest number of commentaries of any dharmaśāstra, there are 9 extant commentaries on the *Manusmṛti* from various regions of India including medhātithi, kullūka, bhāruci, etc. And all these commentaries commentate on the same text with very minor variation, which clearly indicates the preservation of the text.

Dr.julius jolly writes in his aforementioned critical edition of the text, page no.16

“ The great celebrity of the Code appears to have *guarded it against sweeping alterations,* so that the text has remained essentially the same nearly in all Commentaries, however widely distant from one another as to the time and locality of their composition.”

This passage has also been quoted by Patrick Olivelle in his own recent critical edition of the text on page no. 370 .

(IV) The structure of the Manusmṛti

This is a relatively recent argument, put forth by Patrick Olivelle. Per Olivelle, the Manusmṛti shows a very deliberate structure, such that it *must* have been written by a single author , or atleast under the oversight of one, because such a structure cannot be acquired by a text that was continuously edited and interpolated by redactors over centuries. He writes on page no.19 of his critical edition :

“further believe that this text was authored by a single individual or at least by a strong chairman with a committee of research assistants. The kind of deep structure, so subtle yet so clear, that I have discovered in the MDh makes it *impossible to have been composed either through unconscious accumulation or through a series of editorial interventions spanning long intervals of time*. It was conceived and put together by a single individual with extraordinary ability and a systematic mind”

In conclusion, the corroboration of the content of the *Manusmṛti* in other texts, the consistency of its manuscript tradition, the wealth of Commentaries on it, and its deliberate structure, clearly made by a single author, completely eliminate any possibility of it having been significantly interpolated in any way, and the text we have now is almost exactly as it was written thousands of years ago and as it has been referenced and quoted in the Vedas, Rāmāyaṇa and Mahābhārata .

Thus, the Manusmṛti is not corrupted.

3. The Manusmṛti is no longer applicable.

This will be the shortest section, as, if the previous two arguments have been conceded, this one really has no grounds remaining.

The Manusmṛti itself states in multiple verses [(4:168) , (7.18), (9.64), (10.7)] that its injunctions are *Sanātana*(eternal). Thus, if one has conceded the previous 2 points, and the *Manusmṛti* is considered an authoritative and well-preserved text, this point is automatically debunked.

Moreover, as discussed in section 1, the Vedas , which , in hinduism, are *Apauruṣeya*, i.e., eternal and time-independent, state that the verses of manu should be applied. Thus, this injunction is eternally valid within Hinduism , and the *Manusmṛti* is always applicable.

Before moving forward, an argument often cited in this regard that I would like to address is that the smriti ordained for kaliyuga (the current age) is the *Parāśara-smṛti* . This is correct, however, if one is trying to discredit *Manusmṛti* because of certain passages in it he doesn't like it, this line of argument will not offer him much benefit, because the vast majority of the Parāśara-smṛti is the same as Manu with very minor differences. Identical especially the most controversial passages which are the reason for people to attempt to discredit the *Manusmṛti* [as will be discussed shortly]. Secondly, just because parāśara-smṛti is especially ordained for the kaliyuga does not mean that Manusmṛti is invalid in kaliyuga. It just means that parāśara smriti is a little better suited for the people living in kaliyuga.

Thus , Manusmṛti is still applicable in kaliyuga.

Finally, having successively addressed the pathways used by people to attempt to reject the manusmṛti, we come to the actual heart of the matter, *why* they attempt to reject it in the first place.

4. Manusmṛti is discriminatory to śūdras

Of all , this is by far the most common allegation levied against the Manusmṛti. If you ask any random person on the street what they know about Manusmṛti, this is most likely what they will tell you.

(A)
The verses most commonly used to paint this narrative are verses like (8.273), which says that if a śūdra arrogantly attempts to lecture a brahmaṇa on his duty, then oil should be poured in his mouth , or if he hears the veda intentionally , trying to memorise it , then molten lac should be poured in his ears (2.272), etc. Within these verses and those like it there are 2 things that they find objectionable. Firstly, that there is a punishment for such an action at all, and secondly, that the punishment itself is so severe. Let us see both objections.

(I)
Firstly, the restrictions themselves are, seen for themselves, fairly reasonable. Of course, a brāhmaṇa, who has his whole life studied scripture, should not be arrogantly lectured by a śūdra , though the śūdra may politely correct him, as noted by medhātithi.

Of course, the Vedas , being the most sacred texts and capable of producing results by their utterance alone , should only be recited with absolutely correct pronunciation and intonation or else there will be adverse results , for example, in see the story of the birth of the demon *vṛtṛa,* wherein *tvaṣṭṛ*, in the vedic ritual attempting to produce a being who can slay Indra, was supposed to say "**इन्द्रशत्रुर्वर्धस्व**" (may the slayer of indra be nourished), but instead said " **इन्द्रंशत्रुर्वर्धस्व**" (may the one whose slayer is indra be nourished) , and, by the change of a single tone, his whole ritual was reversed. hence a śūdra should not attempt to listen to it for memorisation without properly being initiated into its study (in which case he will become a brāhmaṇa[1]).

1 See my paper on varṇa : https://smallpdf.com/file#s=3d6438d8-d746-4870-b01d-bb24e5dd027e

(II)
Secondly, Regarding the severity of the punishments , note that such punishments are mere *arthavāda* or meant to inspire people to do good or avoid bad, and weren't actually implemented.. For example, it is said that when one circumambulates a temple, each step he takes is equal to an aśvamedha yajña. Does that mean if one takes 100 steps he is eligible to become the next indra (śatakratu)? No . In fact, such exaggerated punishments are seen for Brahmins as well,

Manusmṛti 11:90
सुरां पीत्वा द्विजो मोहादग्निवर्णां सुरां पिबेत् ।
तया स काये निर्दग्धे मुच्यते किल्बिषात् ततः ॥ ९० ॥

“A twice-born person, having, through folly, drunk wine, shall drink wine red-hot ; he becomes freed from his guilt, when his body has been completely burnt by it “

(B)
This verse which presents a severe punishment prescribed for the brāhmaṇa similarly to the śūdra, brings us to our next point, that such verses that seem to show a particular bias against śūdras are in actuality cherry-picked, and in general throughout the Manusmṛti, it is the upper 3 varṇas, especially the brāhmaṇas, who are most restricted, and the śūdras have the least restrictions. Patrick Olivelle writes on page no.41 of his critical edition,

“The ideology that drives Manu, I think, explains the plan of his book. As we will see (II. 2), he devotes 1034 verses (38.6%) to the discussion of the Brahmin and 971 verses (36%) to matters relating to the king; these two take up 74.8% of the entire text. Manu's agenda is two-fold: he wants to tell Brahmins how to behave as true Brahmins devoted to vedic learning and virtue, and he wants to tell kings how to behave as true kings, devoted to Brahmins and ruling the people justly. ”

And on page 16 :

“The Rules for Vaiśyas and śūdras :

Manu's discussion of Vaiśyas and śūdras, the last two of the varnas, is extraordinarily brief. Eight verses are devoted to the Vaisya and just two to the śūdra”

Thus, the vast majority of the Manusmṛti is just rules for the brāhmaṇas and kṣatriyas, from which the śūdras are exempt or dealt with more leniently. Following are a few examples of the same .

On the topic of theft, the Manusmṛti states

Manusmṛti 8:337-338
अष्टापाद्यं तु शूद्रस्य स्तेये भवति किल्बिषम् ।
षोडशैव तु वैश्यस्य द्वात्रिंशत् क्षत्रियस्य च ॥ ३३७ ॥
ब्राह्मणस्य चतुःषष्टिः पूर्णं वाऽपि शतं भवेत् ।
द्विगुणा वा चतुःषष्टिस्तद्दोषगुणविद्ध् हि सः ॥ ३३८ ॥

In the case of theft, the guilt of a Śūdra is eightfold, that of the Vaiśya sixteen-fold, and that of the Kṣatriya thirty-two-fold;—(337) that of the Brāhmaṇa sixty-four-fold, or fully hundred-fold, or twice sixty-four-fold; when he is cognisant of the good or bad quality of the act.—(338)

On the topic of foreign travel it states :

Manusmṛti 2.24
एतान्द्विजातयो देशान् संश्रयेरन् प्रयत्नतः ।
शूद्रस्तु यस्मिन् कस्मिन् वा निवसेद् वृत्तिकर्शितः ॥ २४

The twice-born people should seek to resort to these countries; the Śūdra may however, when distressed for a living, reside in any land.—(24).

The manusmṛti also restricts certain foods for twice-borns only and not śūdras:

Manusmṛti 5:19
छत्राकं विड्वराहं च लशुनं ग्रामकुक्कुटम् ।
पलाण्डुं गृञ्जनं चैव मत्या जग्ध्वा पतेद् द्विजः ॥ १९ ॥

“ The mushroom, the village-pig, garlic, the village-cock, onions and leeks,—the twice-born man eating these intentionally would become an outcast. --(19). “

On the topic of eating meat it says :

Manusmṛti 5:33
नाद्यादविधिना मांसं विधिज्ञोऽनापदि द्विजः ।
जग्ध्वा ह्यविधिना मांसं प्रेतस्तैरद्यतेऽवशः ॥ ३३

“In normal times the twice-born man conversant with the law shall not eat meat unlawfully; having eaten it unlawfully, he shall, after death, be devoured by them helplessly. (33)”

These are just a few examples of many hundreds where the Manusmṛti selectively restricts the twice born men (brāhmaṇas, kṣatriyas, vaiśyas) and gives special leniency to śūdras. The narrative of the manusmṛti oppressing śūdras, built by selectively cherry-picked verses, fails under this light.

Moreover, it is vital to note that the scriptural categories of brāhmaṇa, śūdra, etc, are not the purely birth based castes as they are today, but based on both birth and a person's qualities, where a person was able to change his birth varṇa by his qualities . I have discussed this in detail my aforementioned paper on varṇa, and the Manusmṛti also hints towards it in many verses .

For example,

Manusmṛti 8:102
गोरक्षकान् वाणिजिकांस्तथा कारुकुशीलवान् ।
प्रेष्यान् वार्धुषिकांश्चैव विप्रान् शूद्रवदाचरेत् ॥ १०२

“He shall treat like Śūdras the Brāhmaṇas who tend cattle, who engage in trade, and who are craftsmen, actors, menial servants ok money-lenders.’ ”

In conclusion, the verses which are used to show Manusmṛti as discriminatory to śūdras are cherry-picked , the restrictions imposed by them largely justified, the punishments prescribed non-literal, and the allegations ignorant of the real basis of varṇa.

Thus, the Manusmṛti is not discriminatory to śūdras.

5. The Manusmṛti is discriminatory to women

Before addressing verses that the critics claim are discriminatory to women, I would first of all like to quote some verses which are extremely positive about them.

Manusmṛti tells us to revere women, stating,

Manusmṛti 3:56

यत्र नार्यस्तु पूज्यन्ते रमन्ते तत्र देवताः ।
यत्रैतास्तु न पूज्यन्ते सर्वास्तत्राफलाः क्रियाः ।। [

" Where women are worshipped , there the gods rejoice. Where they are not worshipped, there, all deeds and rites are fruitless. "

Manusmṛti also does not mention barbaric practices like *sati*, as is commonly said about it, but in fact opposes it.

Manusmṛti 5.155

कामं तु क्षपयेद् देहं पुष्पमूलफलैः शुभैः ।
न तु नामापि गृह्णीयात् पत्यौ प्रेते परस्य तु ॥ १५५ ॥

" [After her husband dies] If she wishes, she may emaciate her body by living on auspicious flowers, roots and fruits, but she should not even take the name of another man. "

Medhātithi, the most authentic commentator on the Manusmṛti, writes on this verse ,

" **From this it is clear that the act of killing herself after her husband is clearly forbidden for the woman** , Further, in view of the distinct **Vedic text—'one shall not die before the span of his life is run out'** —being contradicted by the Smṛti-text of Aṅgiras, this latter is open to bring assumed to have some other meaning. . "

Another allegation commonly levied against the Manusmṛti is in the basis of the following verse :

Manusmṛti 9:3
पिता रक्षति कौमारे भर्ता रक्षति यौवने ।
रक्षन्ति स्थविरे पुत्रा न स्त्री स्वातन्त्र्यमर्हति ॥ ३

The father guards her during virginity, the husband guards her in youth, the sons guard her in old age; the woman is never fit for independence.—(iii).

It is really the final line , i.e. " The woman is never fit for independence" that is quoted and scrutinized. Indeed, this is unfair, because the word " independence" here should be considered given the context. Does the verse say that she will be "ruled over" by her father , husband, sons, etc? No. Indeed the verse is purely about *Protection* , that a woman should never be left alone without protection. This is not merely a modern attempt at re-interpretation but acknowledged by Medhātithi in his commentary,

" **The present text does not lay down that she shall not be independent in regard to anything at all; all that it means is that she is not capable of guarding herself, especially as she does not possess the requisite strength. "**

There are many other misinterpreted verses like this one that are a result of colonial era mistranslation further exacerbated by the Manusmṛti being targeted by reform movements like that of B.R.Ambedkar as an easy scapegoat, but all of them similarly fall apart under slightest scrutiny.

In conclusion, the Manusmṛti highly reveres women, does not endorse but in fact prohibits practices like *sati* and the allegations against it with regards to a few cherry picked verses is due to deliberate mistranslation and misinterpretation.

Thus, the Manusmṛti is not discriminatory against women

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।। इति मानवधर्मशास्त्रविरोधनखण्डनं सम्पूर्णम् ।।
